IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT-IV

ITEM No. 402
CP(CAA)44/ND/2025

IN THE MATTER OF:

lndicare Health Services Pvt Ltd With Indicare Health Solutions Pvt Ltd	....	Applicant

Under Section 230-232 of the Companies Act

Order delivered on 21.04.2026

CORAM:
SHRI ASHOK KUMAR BHARDWAJ
HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI
HON'BLE MEMBER (TECHNICAL)

HYBRID HEARING (PHYSICAL & VC)

PRESENT:

For the Applicant	:	PCS Uma Verma, PCS Rohit bhatia, PCS Manju Laur
For the Official Liquidator	:	Mr. Kartikeya Asthana, Ms. Urvashi Raj, Advocates for Official Liquidator
For the I.T. Department	:	Mr. Shlok Chandra SSC alongwith Ms. Madhavi Shukla and Ms. Naincy Jain, JSC for IT Department

ORDER

Our attention is drawn to order dated 20.03.2025 passed in C.A.(CAA) NO. 29/ND/2024 in terms of which the meetings of stakeholders qua both the companies were dispensed with. The relevant excerpt of the order reads thus:-

13. In the wake of the averments made in the application and the documents filed therewith, the following directions are issued qua convening/holding or dispensing with the meetings of the Equity Shareholders, Secured and Unsecured Creditors.

A. In relation to the Transferor Company/Applicant Company No. 1:

a) **With respect to Equity Shareholders:** In view of consent affidavits, from all the Equity Shareholders and Preference Shareholders, convening/holding the meeting of shareholders is dispensed with.

b) **With respect to Secured Creditors:** Since there are no Secured Creditors, therefore the necessity of convening/holding any such meeting does not arise.

c) **With respect to Unsecured Creditors:** In view of consent affidavits, from all the unsecured creditors convening/holding the meeting of unsecured creditors is dispensed with.

B. In relation to the Transferee Company/Applicant Company No. 2:

a) **With respect to Equity Shareholders:** In view of consent affidavits, from all the Equity Shareholders, convening/holding of the meeting of shareholders is dispensed with.

b) **With respect to Secured Creditors:** Since there are no Secured Creditors, therefore the necessity of convening/holding any such meeting does not arise.

c) **With respect to Unsecured Creditors:** In view of consent affidavit from both the Unsecured Creditors, convening/holding the meeting of unsecured creditor is dispensed with.

As can be seen from the order dated 20.01.2026, the Assistant Director appeared on behalf of Regional Director (MCA) and submitted that he has no objection to the scheme. The order reads thus:-

> ***"Learned Counsel for the applicant seeks some more time to comply with the order dated 16.12.2025. Official Liquidator is directed to file the report. Assistant Director on behalf of the Regional Director has appeared and submitted that they have filed the report and they have no objection. List on 24.02.2026."***

Today, Ms. Madhvi Shukla, Ld. Counsel for the Income Tax Department submitted that the department has no objection to approval of the scheme of amalgamation. Ms. Urvasi Raj, Ld. Counsel present on behalf of Official Liquidator virtually also submitted that the Official Liquidator has no objection to approval the scheme. In the wake, the scheme is approved, subject to following conditions:-

i. That all the property, rights and entitlement of the Transferor Company pertaining to the Business be transferred, without further act or deed,

to the Transferee Company and accordingly, the same shall pursuant to Sections 230 to 232 of the Companies Act, 2013, be transferred to and vested in the Transferee Company for all the estate and interest of the Companies but subject nevertheless to all charges now affecting the same;

ii. That all the liabilities and duties of the Transferor Company pertaining to the Business be transferred, without further act or deed, to the Transferee Company and accordingly the same shall pursuant to Sections 230 to 232 of the Companies Act, 2013, be transferred to and become the liabilities and duties of the Transferee Company;

iii. All the employees of the Transferor Company shall be deemed to have become the employees and the staff of the Transferee Company with effect from the Appointed Date, and shall stand transferred to the Transferee Company without any interruption of service and on the terms and conditions no less favourable than those on which they are engaged by the Transferor Company, as on the Effective Date, including in relation to the level of remuneration and contractual and statutory benefits, incentive plans, terminal benefits, gratuity plans, provident plans and any other retirement benefits.

iv. All contracts of the Transferor Company, which are subsisting or having effect immediately before the Effective Date, shall stand transferred to and vested in the Transferee Company and be in full force and effect in favour of the Transferee Company and may be enforced by or against it as fully

and effectually as if, instead of the Transferor Company, the Transferee Company had been a party or beneficiary or obliged thereto.

v. All benefits, entitlements, incentives and concessions under incentive schemes and policies that the Transferor Company are entitled to including under Customs, Excise, Service Tax, VAT, Sales Tax, GST and Entry Tax and Income Tax laws, subsidy receivables from Government, grant from any governmental authorities, direct tax benefit/exemptions/ deductions, shall, to the extent statutorily available and along with associated obligations, stand transferred to and be available to the Transferee Company as if the Transferee Company was originally entitled to all such benefits, entitlements, incentives and concessions.

vi. The Income Tax Department shall have the liberty to determine the tax implications of the amalgamation under the Act, which shall prevail over the scheme, and even in case of liabilities arising against Transferor Company, the Transferee Company shall be responsible/liable.

vii. All proceedings now pending by or against the Transferor Company be continued by or against the Transferee Company.

viii. That the Appointed Date for the scheme shall be 01.04.2023 as specified in the scheme;

ix. That the Petitioner Companies shall, within 30 days after the date of receipt of this order, cause a certified copy of this order to be delivered to the Registrar of Companies for registration in the prescribed form.

x. That any person interested shall be at liberty to apply to the Tribunal in the above matter for any directions that may be necessary;

xi. As per the aforesaid directions, formal orders in Form No. CAA-7 of Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 be issued after the filing of the Schedule of Properties within three weeks from the date of receiving a certified copy of this order by the Petitioners.

xii. However, it is directed that none of the companies would infringe the provisions of section 6 of the Companies Act, 2013. The Transferee Company would not be entitled to benefit in its liability to pay income tax and other committal dues on account of the amalgamation of the Transferor Companies in it.

xiii. The order would also not entitle either the amalgamated company to exemption from any of the applicable law at any level. The Transferee Company would be liable to pay the stamp duties etc., as payable in respect of the scheme of amalgamation

All the concerned Regulatory Authorities are to act on a copy of this order annexed with the Scheme duly authenticated by the Registrar. However, it is made clear that the present order would not entitle the Transferee Company to any exemption from requirement of obtaining license/permit/ registration/ quota/clearance/concessions/grants, needed by it from Central Government, State Government, Local authority, Sectoral regulator or any other authority constituted under any other law for the time being in force.

The CP(CAA)-44/ND/2025 is disposed of in the aforesaid terms accordingly.

-Sd-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

-Sd-
(ASHOK KUMAR BHARDWAJ)
MEMBER (JUDICIAL)

Mamta/Amisha